

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK

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ROBIN NESFIELD and TENIA JONES,

Plaintiffs,

-against-

THE CITY OF NEW YORK, DETECTIVE KIRK
FERNANDEZ (SHIELD NO. 29850), DETECTIVE
EDWARD SINCLAIR (SHIELD NO. 05116),
LIETENANT WILLIAM BUCHANAN, DETECTIVE
WILLIAM ROHAN (SHIELD NO. 2378), DETECTIVE
JAMES RIVERA (SHIELD NO. 5027), POLICE
OFFICER JOHN DOES 1 through 10, individually and in
their official capacities (the name John Doe being
fictitious, as the true names are presently unknown),

Defendants.
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**FIRST AMENDED
COMPLAINT**

Jury Trial Demanded

11-CV-6342(JG)(RER)

PRELIMINARY STATEMENT

1. This is an action to recover money damages arising out of the violation of plaintiffs' rights.

JURISDICTION & VENUE

2. This action is brought pursuant to 42 U.S.C. § 1983 and the Fourth, Fifth and Fourteenth Amendments to the United States Constitution. Jurisdiction is conferred upon this Court by 28 U.S.C. §§ 1331 and 1343.

3. Venue is proper in the Eastern District of New York pursuant to 28 U.S.C. § 1391 (b) and (c).

PARTIES

4. Plaintiffs are citizen of the United States and residents of Kings County in the City and State of New York.

5. The City of New York (the “City”) is a municipal corporation organized under the laws of the State of New York.

6. Defendant Kirk Fernandez (“Fernandez”), at all times relevant herein, was an officer, employee and agent of the NYPD. Defendant Fernandez is sued in his individual and official capacities.

7. Defendant Sergeant Edward Sinclair (“Sinclair”), at all times relevant herein, was an officer, employee and agent of the NYPD. Defendant Sinclair is sued in his individual and official capacities.

8. Defendant William Buchanan (“Buchanan”), at all times relevant herein, was an officer, employee and agent of the NYPD. Defendant Buchanan is sued in his individual and official capacities.

9. Defendant William Rohan (“Rohan”), at all times relevant herein, was an officer, employee and agent of the NYPD. Defendant Rohan is sued in his individual and official capacities.

10. Defendant James Rivera (“Rivera”), at all times relevant herein, was an officer, employee and agent of the NYPD. Defendant Rivera is sued in his individual and official capacities.

11. At all times relevant defendants John and Jane Doe 1 through 10 were police officers, detectives or supervisors employed by the NYPD. Plaintiff does not know the real names and shield numbers of defendants John and Jane Doe 1 through 10.

12. At all times relevant herein, defendants John and Jane Doe 1 through 10 were acting as agents, servants and employees of defendant City of New York and the NYPD. Defendants John and Jane Doe 1 through 10 are sued in their individual and official capacities.

13. Police Officers John Does 1-10 (the “officers” or the “Does”) are members of the New York City Police Department who were acting under color of state law and in their capacities as City law enforcement officers at all relevant times. The Does are liable for directly participating in the unlawful acts described herein and for failing to intervene to protect plaintiff from unconstitutional conduct. The defendants are sued in their individual and official capacities.

STATEMENT OF FACTS

14. On June 22, 2011 Plaintiffs were lawfully present in an apartment at 154 Kingsborough 1st Walk, Apartment 6F, in Brooklyn, NY.

15. At the time, Plaintiff Robin Nesfield was a lawful tenant of the apartment.

16. Plaintiff Tenetia Jones and her two year old daughter were spending the night so that Plaintiff Nesfield could watch her granddaughter later that day.

17. At about 6:45 a.m. a group of about 15 Police Officers, including defendants and accompanied by police dogs, broke down Plaintiff's door and stormed into the apartment.

18. The Officers demanded to know the whereabouts of an Anthony Carson, an individual who had relocated from that apartment to the Bronx more than a month prior before.

19. Plaintiff Nesfield informed the Officers that Mr. Carson no longer lived there.

20. The Officers handcuffed Plaintiff Nesfield and threw her on the bed.

21. The Officers then handcuffed Plaintiff Jones in plain view of her two year old daughter.

22. The Officers then dispatched the police dogs to smell around the apartment for drugs, but quickly exited the premises after being unable to detect a scent.

23. Despite cues from their trained canines that no drugs were present, the Officers ransacked the apartment, leaving it in complete disarray.

24. No drugs, weapons or other contraband was found.

25. Both Plaintiffs were taken to the precinct.

26. Plaintiff Jones was released six hours later and given a summons to appear in court on August 1, 2011.

27. The Summons misrepresented to the Kings County District Attorney's Office that Plaintiff Jones had committed the offense of Possession of a Controlled Substance

28. Plaintiff Nesfield was transported to Brooklyn Central Booking..

29. Defendant officers misrepresented to the Kings County District Attorney's Office that Plaintiff Nesfield had committed the offense of Possession of a Controlled Substance.

30. Plaintiff Nesfield was arraigned in Kings County Criminal Court on the night of June 22, 2011, where her criminal charges were adjourned in contemplation of dismissal.

31. On August 1, 2011 Plaintiff Jones's criminal charges were adjourned in contemplation of dismissal.

32. Plaintiffs was deprived of their liberty, assaulted, battered, suffered emotional distress, mental anguish, pain, fear, anxiety, embarrassment, humiliation, damage to their reputation and loss of income.

FIRST CLAIM

(§1983 UNLAWFUL SEARCH AND SEIZURE)

33. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

34. Defendants violated the Fourth and Fourteenth Amendments because they searched plaintiffs and their residence without reasonable suspicion.

35. As a direct and proximate result of this unlawful conduct, plaintiff sustained the damages herein before alleged.

SECOND CLAIM

(§1983 FALSE ARREST)

36. Plaintiffs repeat the foregoing allegations.

37. Defendants violated the Fourth and Fourteenth Amendments because they arrested plaintiff without probable cause.

38. Plaintiffs were aware of their confinement and did not consent to it.

39. The confinement was not otherwise privileged.

40. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages alleged.

THIRD CLAIM
(§1983 UNREASONABLE FORCE)

41. Plaintiffs repeat the foregoing allegations.

42. Defendants violated the Fourth and Fourteenth Amendments because they used a degree of force on Plaintiffs that was unreasonable because it was unnecessary under the circumstances.

43. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages alleged.

PRAYER FOR RELIEF

WHEREFORE, plaintiff demands a jury trial and the following relief jointly and severally against the defendants:

- a. Compensatory damages in an amount to be determined by a jury;
- b. Punitive damages in an amount to be determined by a jury;
- c. Costs, interest and attorney's fees;
- d. Such other and further relief as the Court may deem just and proper.

DATED: May 14, 2012
New York, New York

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